

SCHOOL BOARD CONTRACT APPROVAL

Loudoun County Public Schools has established guidelines for the contract approval of procurement for goods, services, and construction projects through a contract approval process.

A. Contract Approval.

1. Except as otherwise provided in this Policy, the procurement of goods and services and construction projects in excess of \$250,000 or procurements considered of special interest will be presented to the School Board for award.

2. The Purchasing Agent is authorized to procure goods, services, and insurance in accordance with the Virginia Public Procurement Act, School Board policies, and any accompanying regulations, in amounts not to exceed \$250,000 for a single contract, provided the procurement has been funded in either the operating budget or the capital improvements budget as appropriate. The Purchasing Agent may also approve contracts in any amount that result from previously competitively awarded cooperative agreements by other jurisdictions. The Purchasing Agent shall make all other awards that are within budget in accordance with applicable policies and laws.

3. The LCPS Chief Operations Officer is authorized to procure design and construction contracts in amounts not to exceed \$250,000 as provided in Policy 4320, Methods of Procurement, provided that such procurements are funded in either the operating budget or the capital improvements budget, as appropriate.

4. The LCPS Division Counsel is authorized to procure legal services in amounts not to exceed the approved budget for legal services. The Superintendent and Division Counsel may authorize Cabinet members to enter into contracts for legal services that support specific departments of the Division.

5. Emergency Procurements. In case of an emergency, a contract may be awarded by the Procurement Agent without competition; however, such procurement shall be made with such competition as is practicable under the circumstances. Emergency procurements exceeding \$250,000 shall be brought to the School Board for ratification at its next regular meeting. For the purposes of this paragraph, an emergency shall be deemed to exist at any time that goods, services, insurance, or construction are needed for immediate use in work which may be essential to, or vitally affect, the health, safety, or general welfare of students and employees.

B. Change Orders.

1. A contract may include provisions for modification (change orders) of the contract during performance. The Purchasing Agent, and in the case of design or construction contracts the Chief Operations Officer, is authorized to execute change

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orders or modifications of contracts for goods or services, which shall not exceed the greater of \$50,000 or 25% of the contract price. No fixed price contract may be increased by more than 25% of the amount of the contract or \$50,000, whichever is greater, without the advance approval of the School Board. No change order is permitted to relieve a vendor from any error made in the bid or proposal. A listing of all change orders shall be given to the School Board on a periodic basis.

C. Signature Authority Thresholds for Contracts.

1. Administrators may execute contracts on behalf of the School Board within the following thresholds, subject to budgeted and appropriated funds and approval of Procurement and Risk Management Services:

<i>Total Annual Contract Value</i>	<i>Authorized Signatory</i>
Less than \$5,000	Account Manager/Designee
\$5,000 – \$250,000	Purchasing Agent
More than \$250,000	School Board, signed by the Superintendent or designated Cabinet member
All Legal Services	Division Counsel or designated Cabinet member.

2. Account Manager/Designee. An account manager is an officially appointed individual who directs and is responsible for a program's fiscal management. A designee is any person authorized to act on behalf of the account manager.

3. All contracts shall be in a form reviewed by Procurement and Risk Management Services and approved by the Office of Division Counsel prior to execution.

[Former Policy 4-30]

Adopted: 5/10/94

Revised: 3/24/98, 1/9/07, 5/10/16

Confirmed 10/13/09, 11/09/21

Current Revision: 6/23/26

Legal Refs: Code of Virginia, 1950, as amended, § [2.2-4309](#), § [2.2-4344](#)

Cross Ref: Policy [4150](#), Financial Accounting and Reporting, Policy [2160](#), Conflict of

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Interests and Disclosure of Economic Interests; Policy [4320](#), Methods of Procurement; Policy [2310](#), Committees of the School Board; Policy [3070](#), Safety-and Emergency-Related Communications